

UK - Shared Parental Leave Procedure

Purpose and Scope

This procedure sets out the rights of employees relating to shared parental leave and pay.

This procedure applies to all employees who are employed by Wood in the United Kingdom. If the mother/adopter is employed by the Company, their partner must (where relevant) submit any notifications to take shared parental leave to their own employer. Similarly, if it is the partner who is employed by the Company, the mother/adopter must (where relevant) submit any notifications to take shared parental leave to their own employer. Both parties should ensure that they are each liaising with their respective employers to ensure that requests for shared parental leave are handled as smoothly as possible.

Sections 2.5.4 and 2.5.5 apply to eligible employees engaged on a Professional Technical contract of employment; no other contract styles are eligible.

This procedure does not form part of an employee's terms and conditions of employment, and the Company reserves the right to amend it at any time.

This procedure will be superseded by the content of any recognised collective bargaining/working rule agreements, site agreements or individual contracts of employment, in the event of there being any difference(s) in arrangements.

This procedure does not apply to contractors, consultants or any self-employed individuals providing services to Wood.

2.0 Shared Parental Leave Procedure

Shared parental leave enables mothers/adopters to commit to ending their maternity/adoption leave and pay at a future date, and to share the untaken balance of leave and pay as shared parental leave and pay with their partner/the child's other parent, or to return to work early from maternity/adoption leave and opt in to shared parental leave and pay later.

Shared parental leave should not be confused with ordinary parental leave, which is unaffected by shared parental leave. The Company has a UK - Ordinary Parental Leave Procedure.

The Company recognises that, from time to time, employees may have questions or concerns relating to their shared parental leave rights. The Company encourages open discussion with employees to ensure that questions and problems can be resolved as quickly as possible. As shared parental leave provisions are complex, if an employee wishes to take shared parental leave, they should clarify the relevant procedures with HR to ensure that they are followed correctly.

2.1 Eligibility for Shared Parental Leave

For employees to be eligible to take shared parental leave, both parents must meet certain eligibility requirements.

2.1.1 Births

The mother is eligible for shared parental leave if they:

1. have at least 26 weeks' continuous employment with the Company by the end of the Qualifying Week (QW) and remain in continuous employment with the Company in the week before the leave is to be taken; and
2. have, at the date of the child's birth, the main responsibility, apart from the partner, for the care of the child; and
3. are entitled to statutory maternity leave in respect of the child; and
4. comply with the relevant maternity leave curtailment requirements (or have returned to work before the end of statutory maternity leave) and shared parental leave notice and evidence requirements.

In addition, for the mother to be eligible for shared parental leave, the partner must:

1. have been employed or been a self-employed earner in at least 26 of the 66 weeks immediately preceding the Expected Week of Childbirth (EWC); and
2. have average weekly earnings of at least the maternity allowance threshold for any 13 of those 66 weeks; and
3. have, at the date of the child's birth, the main responsibility, apart from the mother, for the care of the child.

The partner is eligible for shared parental leave if they:

1. have at least 26 weeks' continuous employment with the Company by the end of the QW and remain in

continuous employment with the Company until the week before any period of shared parental leave that they take; and

2. have, at the date of the child's birth, the main responsibility, apart from the mother, for the care of the child; and
3. comply with the relevant shared parental leave notice and evidence requirements.

In addition, for the partner to be eligible for shared parental leave, the mother must:

1. have been employed or been a self-employed earner during at least 26 of the 66 weeks immediately preceding the EWC; and
2. have average weekly earnings of at least the maternity allowance threshold for any 13 of those 66 weeks; and
3. have, at the date of the child's birth, the main responsibility, apart from the partner, for the care of the child; and
4. be entitled to statutory maternity leave, statutory maternity pay or maternity allowance in respect of the child; and
5. comply with the relevant maternity leave or pay curtailment requirements or have returned to work before the end of statutory maternity leave.

2.1.2 Adoptions

The adopter is eligible for shared parental leave if they:

1. have at least 26 weeks' continuous employment with the Company by the end of the week in which the adopter is notified of having been matched for adoption with the child (or by the end of the week in which they receive official notification in relation to an adoption from overseas) and remain in continuous employment with the Company until the week before any period of shared parental leave that they take; and
2. have, at the date on which the child is placed for adoption (or enters Great Britain if the child is being adopted from overseas), the main responsibility, apart from the partner, for the care of the child; and
3. are entitled to statutory adoption leave in respect of the child; and
4. comply with the relevant adoption leave curtailment requirements (or have returned to work before the end of statutory adoption leave) and shared parental leave notice and evidence requirements.

In addition, for the adopter to be eligible for shared parental leave, the partner must:

1. have been employed or been a self-employed earner in at least 26 of the 66 weeks immediately preceding the week in which the adopter is notified of having been matched for adoption with the child (or the week in which the child enters Great Britain in relation to an adoption from overseas); and
2. have average weekly earnings of at least the maternity allowance threshold for any 13 of those 66 weeks; and
3. have, at the date on which the child is placed for adoption (or enters Great Britain if the child is being adopted from overseas), the main responsibility, apart from the adopter, for the care of the child.

The partner is eligible for shared parental leave if they:

1. have at least 26 weeks' continuous employment with the Company by the end of the week in which the adopter is notified of having been matched for adoption with the child (or by the end of the week in which they receive official notification in relation to an adoption from overseas) and remain in continuous employment with the Company until the week before any period of shared parental leave that they take; and
2. have, at the date on which the child is placed for adoption (or enters Great Britain if the child is being adopted from overseas), the main responsibility, apart from the adopter, for the care of the child; and
3. comply with the relevant shared parental leave notice and evidence requirements.

In addition, for the partner to be eligible for shared parental leave, the adopter must:

1. have been employed or been a self-employed earner during at least 26 of the 66 weeks immediately preceding the week in which the adopter is notified of having been matched for adoption with the child (or the week in which the child enters Great Britain in relation to an adoption from overseas); and
2. have average weekly earnings of at least the maternity allowance threshold for any 13 of those 66 weeks; and

--	--	--

3. have, at the date on which the child is placed for adoption (or enters Great Britain if the child is being adopted from overseas), the main responsibility, apart from the partner, for the care of the child; and
4. be entitled to statutory adoption leave or statutory adoption pay in respect of the child; and
5. comply with the relevant adoption leave or pay curtailment requirements or have returned to work before the end of statutory adoption leave.

2.2 Length and timing of Shared Parental Leave

The amount of shared parental leave to which parents are entitled will depend on when the mother/adopter brings their maternity/adoption leave period to an end and the amount of leave that the other parent takes in respect of the child.

2.2.1 Births

The first two weeks following birth are the compulsory maternity leave period and are reserved for the mother. This means that the mother cannot curtail their maternity leave to take shared parental leave until two weeks after the birth and the maximum period that the parents could take as shared parental leave is 50 weeks between them.

The mother's partner can begin a period of shared parental leave at any time from the date of the child's birth. However, the partner should bear in mind that they will lose any entitlement to take up to two weeks' paternity leave following the birth of their child if shared parental leave is taken first. The mother and partner must take any shared parental leave within 52 weeks of birth.

2.2.2 Adoptions

An employee can begin a period of shared parental leave at any time from the date on which the child is placed for adoption (for adoptions from overseas, at any time from the date on which the child enters Great Britain) or, where more than one child is placed for adoption through a single placement, the date of placement of the first child (for adoptions from overseas, at any time from the date on which the first child enters Great Britain). However, employees should bear in mind that the adopter's partner will lose any entitlement to take up to two weeks' paternity leave following the adoption of their child if shared parental leave is taken first. The employee must take any shared parental leave within 52 weeks of the date on which the child is placed for adoption (for adoptions from overseas, within 52 weeks of the date on which the child enters Great Britain).



2.3 Notice Requirements

The notices that parents must give to the relevant employer to be able to take shared parental leave are made up of three elements. These are:

- a 'curtailment notice' from the mother/adopter setting out when they propose to end their maternity/adoption leave (unless the mother/adopter has already returned to work from maternity/adoption leave); and

- a 'notice of entitlement and intention' from the employee giving an initial, non-binding indication of each period of shared parental leave that they are requesting; and
- a 'period of leave notice' from the employee setting out the start and end dates of each period of shared parental leave that they are requesting.

2.3.1 Curtailment notice

Before the mother/adoption or partner can take shared parental leave, the mother/adoption must either return to work before the end of their maternity/adoption leave (by giving the required eight weeks' notice of their planned return) or provide the Company with a curtailment notice using the 'UK - Maternity Leave Curtailment Notice' or 'UK - Adoption Leave Curtailment Notice' as appropriate. The maternity/adoption leave curtailment notice must state the date on which maternity/adoption leave is to end. That date must be:

- after the compulsory maternity leave period, which is the two weeks after birth, or two weeks after the first day of the adopter's ordinary adoption leave period; and
- at least eight weeks after the date on which the mother/adoption gave the maternity/adoption leave curtailment notice to the Company; and
- at least one week before what would be the end of the additional maternity/adoption leave period.

The mother/adoption must provide their curtailment notice at the same time they provide either their notice of entitlement and intention or a declaration of consent and entitlement signed by the mother/adoption confirming that their partner has given their employer a notice of entitlement and intention.

2.3.2 Revocation of Curtailment Notice

The mother/adoption can withdraw their notice curtailing their maternity/adoption leave in limited circumstances. The withdrawal of a curtailment notice must be in writing to the employee's manager, copying HR, using the 'UK - Revocation of Curtailment Notice (Mothers)' or 'UK - Revocation of Curtailment Notice (Adopters)' and can be given only if the mother/adoption has not returned to work. The mother/adoption can withdraw their curtailment notice if:

- it is discovered that neither the mother/adoption nor the partner are entitled to shared parental leave or SShPP and the mother/adoption withdraws their maternity/adoption leave curtailment notice within eight weeks of the date on which the notice was given; or
- the curtailment notice was given before the birth of the child and the mother withdraws their curtailment notice within six weeks of the child's birth; or
- the partner has died.

2.3.3 Notice of Entitlement and Intention

The employee, whether the mother or the partner, must provide the Company with a notice of entitlement and intention.

This notice is to allow the Company to check that the employee is entitled to shared parental leave and to provide the Company with an initial indication of the shared parental leave pattern that the employee wishes to take. This notice is not binding and must be provided at least eight weeks before the start date of the first period of shared parental leave requested in the notice.

The notice of entitlement and intention should be submitted to the employee's manager, copying HR, using one of the following forms as applicable:

- 'UK - Notice of Entitlement and Intention (Mothers)'
- 'UK - Notice of Entitlement and Intention (Partners)'
- 'UK - Notice of Entitlement and Intention (Adoptions within UK)'
- 'UK - Notice of Entitlement and Intention (Adoptions from Overseas)'

In addition, the notice of entitlement and intention must include a declaration signed by the adopter using one of the following forms as applicable.

--	--	--

A declaration of consent and entitlement should be submitted to the employee's manager, copying HR, in circumstances where the mother/adopter is not planning to take any shared parental leave, but is curtailing their maternity/adoption leave to allow their partner to take shared parental leave. The employee should do so using 'UK - Declaration of Consent and Entitlement (Mothers)' or 'UK - Declaration of Consent and Entitlement (Adopters)' as appropriate.

Within 14 days of receiving a notice of entitlement and intention, the Company may request employees to provide the following information:

- a copy of the child's birth certificate (or if the child has not yet been born, a copy of the birth certificate within 14 days of the birth. If the birth certificate has yet to be issued after this period, a signed declaration stating the date and location of the child's birth); or
- one or more documents showing the name and address of the adoption agency or local authority, the matching date or the expected placement date, or an official notification; or
- a parental statutory declaration, which is a statutory declaration that the employee fulfils the criteria for a Parental Order Parent; or
- the name and address of the other parent's employer (or a declaration that they have no employer).

If the Company receives a request from another employer to confirm details regarding one of its employees in relation to shared parental leave, the Company will request the employee's consent for the information to be provided to the other employer.

2.3.4 Variation or Cancellation of Notice of Entitlement and Intention

An employee can vary or cancel their proposed shared parental leave dates following the submission of a notice of entitlement and intention if they give the Company written notice. The notice should be submitted to the employee's manager, copying HR, using 'UK - Variation of Notice of Entitlement and Intention (Mothers)' or 'UK - Variation of Notice of Entitlement and Intention (Adopters)' as appropriate.

Any indication of leave intended to be taken that the employee provides in a variation of notice of entitlement and intention is non-binding until they provide a period of leave notice in relation to that period of leave.

2.3.5 Period of Leave Notice

To take a period of shared parental leave, the employee must provide the Company with a written notice setting out the start and end dates of each period of shared parental leave requested in that notice. The notice, which is binding, should be submitted to the employee's manager, copying HR, using 'UK - Period of Leave Notice'.

A period of leave notice must be given not less than eight weeks before the start date of the first period of shared parental leave requested in the notice. The notice may be given at the same time as a notice of entitlement and intention and can be a request for a continuous period of leave or discontinuous periods of leave.

2.3.6 Variation or Cancellation of Period of Leave Notice

An employee can vary or cancel their proposed shared parental leave dates following the submission of a period of leave notice, if they provide the Company with a written notice not less than eight weeks before any period of leave varied by the notice is due to commence.

The notice should be submitted to the employee's manager, copying HR, using 'UK - Variation of Period of Notice (Mothers)' or 'UK - Variation of Period of Notice (Adopters)' as appropriate.

The written notice can:

- vary the start date or the end date of any period of shared parental leave or cancel a request for leave; or
- request that a continuous period of leave become discontinuous periods of leave; or
- request that discontinuous periods of leave become a continuous period of leave.

The employee can provide a combined total of up to three period of leave notices or variations of period of leave notices per pregnancy/adoption, although the Company may waive this limit in some circumstances.

--	--	--

2.4 Taking Shared Parental Leave

Shared parental leave must be taken in blocks of at least one week. Employees can request to take shared parental leave in one continuous block (in which case the Company is required to accept the request as long as the employee meets the eligibility and notice requirements), or in discontinuous blocks of leave (in which case the employee needs the Company's agreement). Please refer to section 3.5.1 for more information.

A maximum of three requests for leave per pregnancy/adoption placement can normally be made by each parent. There is only one entitlement to shared parental leave in relation to any pregnancy or adoption placement, irrespective of how many children are born/placed through that placement.

2.4.1 Discontinuous Periods of Shared Parental Leave

As noted above, employees may request discontinuous periods of leave. For example, the mother/adopter and partner could request a pattern of leave from their respective employers that allows them to alternate childcare responsibilities. It is helpful if employees discuss potential plans to request discontinuous periods of leave with their manager and HR in advance of submitting any formal notice to give the Company time to consider the request and hopefully agree a pattern of leave.

If the Company is unable to agree to an employee's pattern of leave requested straight away, there will be a two-week discussion period.

If agreement is reached within those two weeks, the employee is entitled to take the leave on the dates agreed.

If no agreement is reached within that two-week discussion period:

- The employee is entitled to take the leave as one continuous period of leave. In that event, the employee must choose a start date for the leave that is at least eight weeks from the date on which the period of leave notice was originally given. The employee must notify the Company of that date within five calendar days of the end of the two-week discussion period.
- If the employee does not choose a start date within five calendar days of the end of the two-week discussion period, a period of continuous leave will start on the date of the first period of leave requested in the period of leave notice.
- Alternatively, if the Company refuses the request or no agreement is reached during the two-week discussion period, the employee may withdraw a period of leave notice requesting discontinuous periods of leave. The employee can withdraw a period of leave notice at any time on or before the 15th day after the period of leave notice was given. A notice for discontinuous leave that has been withdrawn does not count towards the total number of requests for leave that an employee can make.

The Company will confirm any agreed arrangements in writing. Agreeing to one request will not set a precedent in respect of other requests.

2.5 Terms and Conditions during Shared Parental Leave

While an employee is on shared parental leave, all the terms and conditions of their contract of employment, including where applicable, company car/transport allowance, with the exception of normal pay (see 2.6.1) will continue and their continuity of employment will not be affected.

During shared parental leave, the employee continues to be bound by the terms and conditions of their employment.

2.5.1 Shared Parental Pay

ShPP is available for eligible parents to share between them while on shared parental leave. The number of weeks' ShPP available to the parents will depend on how much maternity pay, maternity allowance or adoption pay the mother/adopter has been paid when their maternity/adoption leave or pay period ends.

--	--	--



2.5.3 Statutory Shared Parental Pay (SShPP)

SShPP is available for eligible parents to share between them while on shared parental leave. The number of weeks' SShPP available to the parents will depend on how much statutory maternity pay (SMP), maternity allowance or statutory adoption pay (SAP) the mother/adopter has been paid when their maternity/adoption leave or pay period ends.

In the case of births, a total of 39 weeks' Statutory Maternity Pay (SMP) or maternity allowance is available to the mother. As there is a compulsory maternity leave period of two weeks, this means that a mother who ends their maternity leave at the earliest opportunity could share up to 37 weeks' SShPP with their partner.

In the case of adoptions, a total of 39 weeks' Statutory Adoption Pay (SAP) is available to the adopter. As adoption leave cannot be curtailed for the first two weeks of leave, an adopter can share up to 37 weeks' SShPP with their partner.

Any SShPP due during shared parental leave will be paid at the rate set by the government for the relevant tax year, or at 90% of the employee's average weekly earnings if this figure is lower than the government's set weekly rate. Unlike SMP, there is no provision for employees to be paid 90% of their earnings for the first six weeks of the SShPP period where this is higher than the statutory rate. Payment of SShPP is made on the usual pay dates and is subject to tax and National Insurance (NI) deductions.

For employees to be eligible for SShPP, both parents must meet certain eligibility requirements as set out in sections 2.3.1.1 and 2.3.1.2.

2.5.3.1 Births

The mother is eligible for SShPP if they:

- have at least 26 weeks' continuous employment with the Company by the end of the QW and remain in continuous employment with the Company until the week before any period of shared parental pay that they take; and
- have normal weekly earnings for a period of eight weeks by the end of the QW of at least the lower earnings limit for NI contribution purposes; and
- have, at the date of the child's birth, the main responsibility, apart from the partner, for the care of the child; and
- are absent from work and intend to care for the child during each week in which they receive SShPP; and
- are entitled to SMP in respect of the child, but the maternity pay period has been reduced.

In addition, for the mother to be eligible for SShPP, the partner must meet the same eligibility requirements as set out in section 3.1.1 (points 5-7):

The partner is eligible for SShPP if they:

- have at least 26 weeks' continuous employment with the Company by the end of the QW and remain in continuous employment with the Company until the week before any period of shared parental pay that they take; and
- have normal weekly earnings for eight weeks ending by the end of the QW of at least the lower earnings limit for NI contribution purposes; and
- have, at the date of the child's birth, the main responsibility, apart from the mother, for the care of the child; and
- are absent from work and intends to care for the child during each week in which they receive SShPP.

In addition, for the partner to be eligible, the mother must meet the same eligibility requirements as set out in section 3.1.1 (points 11-14).

2.5.3.2 Adoptions

For employees to be eligible for SShPP, both adoptive parents must meet certain eligibility requirements.

The adopter is eligible for SShPP if they:

- have at least 26 weeks' continuous employment with the Company by the end of the week in which the adopter is notified of having been matched for adoption with the child (or by the end of the week in which they receive official notification in relation to an adoption from overseas) and remain in continuous employment with the Company until the week before any period of shared parental leave that they take; and
- have normal weekly earnings for a period of eight weeks ending with the week in which the adopter is notified of having been matched for adoption with the child (or by the week in which they receive official notification in relation to an adoption from overseas) of at least the lower earnings limit for NI contribution purposes; and
- have, at the date on which the child is placed for adoption (or enters Great Britain if the child is being adopted from overseas) the main responsibility, apart from the partner, for the care of the child; and
- are absent from work and intend to care for the child during each week in which they receive SShPP; and
- are entitled to SAP in respect of the child, but the adoption pay period has been reduced.

In addition, for the adopter to be eligible for SShPP, the partner must meet the same eligibility requirements as set out in section 3.1.2 (points 5-7).

The partner is eligible for SShPP if they:

- have at least 26 weeks' continuous employment with the Company by the end of the week in which the adopter is notified of having been matched for adoption with the child, or by the end of the week in which they receive official notification in relation to an adoption from overseas, and remain in continuous employment with their employer until the week before any period of shared parental leave that they take; and
- have normal weekly earnings for a period of eight weeks ending with the week in which the adopter is notified of having been matched for adoption with the child, or by the week in which they receive official notification in relation to an adoption from overseas of at least the lower earnings limit for NI contribution purposes; and
- have, at the date on which the child is placed for adoption (or enters Great Britain if the child is being adopted from overseas), the main responsibility, apart from the adopter, for the care of the child; and
- are absent from work and intends to care for the child during each week in which they receive SShPP.

In addition, for the partner to be eligible, the adopter must meet the same eligibility requirements as set out in section 3.1.2 (points 11-14).

--	--	--

2.5.4 Company Shared Parental Pay (CShPP)

Employees on a Professional Technical contract of employment may be eligible for CShPP.

In the case of births, to be eligible for CShPP, employees must have at least 52 weeks' continuous employment with the Company by the end of the QW and remain in continuous employment with the Company until the week before any period of shared parental leave that they take.

In the case of adoptions, to be eligible for CShPP, an employee must at least 52 weeks' continuous employment with the Company by the end of the week in which the adopter is notified of having been matched for adoption with the child (or by the end of the week in which they receive official notification in relation to an adoption from overseas) and remain in continuous employment with the Company until the week before any period of shared parental leave that they take.

Any period of Company Maternity Pay or Company Paternity Pay for the same child will offset the employee's CShPP entitlement, with the initial deduction coming from any entitlement to full CShPP. Any CShPP due during shared parental leave will be paid at the employee's full basic salary during the first 11 weeks of shared parental leave and at half basic salary for the subsequent 13 weeks.

CShPP includes any entitlement to SShPP. Payment of CShPP is made on the usual pay dates and is subject to tax and NI deductions.

Individual circumstances will differ, however, one example of a shared parental leave and pay arrangement is outlined below.

Illustration:

- Parent 1 works for an external company and is the mother of the child.
- Parent 2 works for Wood and is the partner of Parent 1 or the child's parent.
- Parent 1 takes 6 weeks of maternity leave (inclusive of the two-week compulsory maternity leave period) which will be payable in line with the Company procedure of Parent 1's employer. This leaves 46 weeks of shared parental leave and 33 weeks of SShPP for the parents to share between them.
- Parent 2 (who is employed by Wood) then takes 13 weeks of shared parental leave and pay. They will receive full basic salary for the first 11 weeks followed by half basic salary for the next 2 weeks.
- Parent 1 then takes 7 weeks of shared parental leave and pay which will be payable in line the Company procedure of Parent 1's employer.
- Parent 2 then takes 13 weeks of shared parental leave and pay. They will receive half basic salary for the first 11 weeks followed by SShPP for the next 2 weeks.
- Parent 2 then takes the last 13 of weeks of shared parental leave entitlement. Parent 2 will receive no pay during this shared parental leave period as, between them, the parents have exhausted their full SShPP entitlement of 33 weeks.

2.5.5 Company Shared Parental Pay (CShPP) Repayment Requirements

An employee will have no further entitlement to CShPP and will be required to repay any received CShPP (less any SShPP paid) as set out below:

- If the employee advises the Company that they will not be returning to work, or if they do not exercise their right to return to work, following shared parental leave, the employee will be required to repay 100% CShPP paid to them (less any SShPP paid).
- if the employee gives, or is given, notice of termination of employment (unless termination is by reason of redundancy or ill health), they will have no further entitlement to CShPP and will be required to repay the amounts as set out below within 12 months of returning to work.

Timescale	Repayment Terms
Within 6 months	100% CShPP paid to employee (less any SShPP paid)

Between 6 and 12 months	50% CShPP paid to employee (less any SShPP paid)
-------------------------	--

The assessment of the 12-month period relates to the period between the employee returning to work and the effective date of termination.

The terms of this clause will be discussed with the employee prior to commencing leave, and the employee will be required to agree to the Company deducting the net sums (less any statutory payments) under this clause from any final outstanding payments due.

2.5.6 Annual Leave

During shared parental leave, annual leave will continue to accrue at the rate provided in the employee's terms and conditions of employment. Employees are to discuss their intentions regarding taking annual leave with their manager.

Annual leave may be added to the beginning or the end of any period of shared parental leave. It is expected that annual leave accrued during the current holiday year up to the shared parental leave start date is taken prior to starting shared parental leave. Where possible, annual leave accrued during shared parental leave should be used within the current holiday year. However, accrued annual leave may roll over into the following holiday year in circumstances where it is not possible for the employee to take their accrued annual leave within the current holiday year. Any rolled over annual leave must be taken prior to returning to work following the employee's final period of shared parental leave.

2.5.7 Pension

During periods of paid shared parental leave, the Company will continue to pay contributions into the employee's pension scheme. The amount to contribute will differ depending on the employee's pension arrangements.

In the case of non-salary sacrifice pension arrangements, the employer contribution will be based on what the employee earnings would have been had they not been on shared parental leave. The employee contribution will be the relevant percentage of earnings whilst on paid leave.

In the case of salary sacrifice pension arrangements, the employee contribution will be the relevant percentage of earnings whilst on paid leave and the employers' contribution will be based on what the employee earnings would have been had they not been on shared parental leave. The Company will also make up for the shortfall in the employee contribution to ensure the sum paid into the pension remains unchanged.

Employee and employer contributions will cease during unpaid periods of shared parental leave.

2.5.8 Flex Benefits

Any deductions for flex benefits will continue during shared parental leave provided there are funds to deduct from. Where there are no funds to deduct from, deductions will recommence at the next possible pay run and continue until the balance due is fully paid.

2.6 Salary Review

If a salary review occurs during shared parental leave, any change to the employee's salary will be applied to applicable benefits and will be effective from the salary review date. Employees on shared parental leave will be notified of any changes to their salary and pay will be recalculated accordingly.

2.7 Redundancy

An employee on shared parental leave retains all statutory rights in respect of redundancy, including the right to a notice period. If an employee's role is at risk of redundancy during the protected period, the employee will be offered any suitable and appropriate alternative vacancy that exists. To be suitable and appropriate, the new role will have terms and conditions not substantially less favourable than the previous role and the Company will normally determine the suitability of an alternative vacancy by considering job content, seniority, terms and conditions, location, and hours of work. Further information can be found in the UK - Redundancy Policy.

2.8 Contact During Shared Parental Leave

The Company reserves the right to maintain reasonable contact with employees during shared parental leave. This may be to discuss the employee's plans for their return to work, to discuss any special arrangements to be made or training to be given to ease their return to work or to update them on developments at work during their absence.

Employees are to discuss their preferred method of contact with their manager and ensure their contact details are up to date prior to going on leave.

An employee can agree to work for the Company or to attend training for up to 20 days during shared parental leave without that work bringing the period of their shared parental leave to an end. These days, which are known as 'shared parental leave in touch' (SPLIT) days, are in addition to the ten 'keeping in touch' (KIT) days available to employees during maternity or adoption leave.

SPLIT days are optional and by agreement between the employee and the Company. The Company has no right to require employees to carry out any work, and employees have no right to undertake any work during their shared parental leave.

SPLIT days will be paid at the employee's equivalent hourly rate for the hours worked, however, any payment due will be offset against any shared parental leave pay due within the same pay period, provided that pay for SPLIT days meets the National Minimum Wage. Working part of a day will count as one SPLIT day, however payment will only be made for actual hours worked.

To ensure payment of the SPLIT day, the employee's manager must advise HR of the dates of each SPLIT day and the number of hours worked. Employees should also record SPLIT days in the Company's timewriting system as appropriate.

2.9 Returning to Work

The Company will contact the employee shortly before they are due to return to work to discuss arrangements for their return.

If an employee wishes to end a period of shared parental leave early, they must give the Company eight weeks prior written notice of the new return date.

If an employee wishes to return to work later than the expected return date, they may request unpaid ordinary parental leave in accordance with the UK - Ordinary Parental Leave Policy; and/or request paid annual leave in the normal way.

If an employee does not intend to return to work after shared parental leave, or is unsure, they are to contact their manager or HR as early as possible. If an employee decides not to return, they must give notice of resignation in accordance with their terms and conditions of employment. The amount of shared parental leave left to run when the employee gives notice must be at least equal to the contractual notice period otherwise, the Company may require the employee to return to work for the remainder of the notice period.

2.9.1 Rights on Returning to Work

An employee is entitled to resume working in the same job when returning to work from shared parental leave if the period of leave, when added to any other period of shared parental leave, statutory maternity leave, statutory paternity leave or statutory adoption leave taken by the employee in relation to the same child, did not last more than 26 weeks.

If an employee is returning to work from shared parental leave and the period of leave taken is more than 26 weeks, when added to any other period of shared parental leave, statutory maternity leave, statutory paternity leave or statutory adoption leave taken in relation to the same child, or was the last of two or more consecutive periods of statutory leave that included a period of ordinary parental leave of more than four weeks, or a period of additional maternity leave or additional adoption leave, the employee has the right to return to the same job as before unless this is not reasonably practicable. In these circumstances, if it is not reasonably practicable for the Company to permit a return to the same job as before, the Company will offer the employee another job that is both suitable and appropriate in the circumstances on terms and conditions no less favourable than those that applied previously.

--	--	--

2.9.2 Requests for Flexible Working

Requests to change working patterns are to be made as soon as possible prior to returning to work and in accordance with the applicable flexible working procedure.

4.0 Abbreviations and Definitions

Term	Description
Adopter	The person with whom the child is, or is expected to be, placed for adoption, or, in a case where two people have been matched jointly, whoever has elected to be the child's adopter for the purposes of adoption leave.
Expected Placement Date (EPD)	The date on which an adoption agency expects that it will place a child into the employee's care with a view to adoption.
Expected Week of Childbirth (EWC)	The week, beginning on a Sunday, during which the mother's doctor or midwife expects them to give birth.

Term	Description
Matched for adoption	An adoption agency deciding that a person would be a suitable adoptive parent for a child either individually or jointly with another person. A person is notified of having been "matched for adoption" with a child on the date on which the person receives notification of the adoption agency's decision.
Mother	The mother or expected mother of the child.
Official notification	Notification, issued by or on behalf of the relevant central authority, that it is prepared to issue a certificate to the overseas authority concerned with the adoption of a child from overseas, or that it has issued a certificate and sent it to that authority, confirming, in either case, that the adopter is eligible to adopt, and has been assessed and approved as being a suitable adoptive parent.
Partner	The person who is married to, or the civil partner or the partner of, the employee at the date of the child's date of birth, or the date on which the child is placed for adoption (for adoptions from overseas, at the date on which the child enters Great Britain). This includes someone, of whatever sex, who lives with the mother/adopter and the child in an enduring family relationship but who is not the mother's/adopter's child, parent, grandchild, grandparent, sibling, aunt, uncle, niece or nephew.
Placed for adoption	Placed for adoption under UK adoption laws, including placement with a local authority foster parent who is also a prospective adopter ("foster to adopt").
Protected period	The protected period begins after the employee has returned to work after a period of at least six consecutive weeks of shared parental leave until 18 months after the child's date of birth or placement for adoption (or entered Great Britain in the case of overseas adoption).
Qualifying Week (QW)	The 15th week before the Expected Week of Childbirth (EWC).
The Company	References to the "Company" in this procedure are references to the employee's current employer.